

See also T 2196/15 for an example of difficulties in providing the common general knowledge.

3. Availability to the public

3.1. General

Pursuant to Art. 54(2) EPC, the state of the art shall be held to comprise everything made available to the public by means of a written or oral description, by use, or in any other way, before the date of filing of the European patent application.

Board of appeal case law has established that the theoretical possibility of having access to information renders it available to the public (T 444/88), whatever the means by which the invention was made accessible, and – in the case of prior use – irrespective of whether there were particular reasons for analysing the product (G 1/92, OJ 1993, 27). This decision supersedes T 93/89 (OJ 1992, 718), T 114/90 and T 62/87 on this point. It is not relevant, as a matter of law, whether on that date a member of the public actually saw the document or knew that it was available (T 381/87, OJ 1990, 213). Particular problems may arise, depending on how the information is made available.

3.2. Ways of making information available to the public

3.2.1 Publications and other printed documents

a) General

For a written description to be regarded as having been made available to the public, it suffices that it was possible for the public to gain knowledge of its content without any obligation of confidentiality restricting the use or dissemination of such knowledge. As to whether written information contained in a document has been made publicly available, it is generally necessary to establish all the facts: where did the documents turn up; under what circumstances were the documents made accessible to the public, and who constituted the public in the case in question; was there any explicit or implicit confidentiality agreement; and when (date or period of time) were said documents publicly available (T 526/12).

b) Company papers

In T 37/96 the board had to decide on the public availability of some prior-art documents. Two of them were **typical company papers**. The board held that unlike scientific or technical journals, such papers as prospectuses or product descriptions could not be assumed to have automatically made their way into the public domain. On the contrary, whether they had indeed been available to the public on a given date depended on the particular circumstances and the evidence available (see also T 77/94, T 1017/01). In T 19/05 the board stated that the document was a company-generated technical paper and could thus not be assumed to have automatically made its way into the public domain.

In T.278/09, when examining whether a product data sheet had been available to the public, the board observed that such a sheet merely described the components and features of newly developed or improved products, but as such contained no evidence in relation to marketing or any public availability. The decision whether and when to market a product could depend on other circumstances, such as the economic climate and the relevant firm's marketing policy. In any event, product data sheets did not necessarily become information destined for the public when it was decided to market the product they described, as customers to whom the sheet was distributed could be obliged to treat it as confidential. It was therefore insufficient in such a case to decide on the mere balance of probabilities that simple suppositions that an allegedly novelty-destroying product data sheet had been made available to the public were accurate (see also T.738/04). A product data sheet thus does not provide the same level of information as an advertising brochure (T.184/11, see below).

c) Advertising brochure

T.804/05 concerned the public availability of an advertising brochure usually distributed amongst interested specialists and bearing a date on its cover. The board decided that, in the absence of any evidence to the contrary, it had to be assumed that this brochure had been made available to interested customers, without any obligation to keep it secret, in the months following the cover date (see also T.1589/13 (internet publications) which stated that this presumption was supported by an affidavit and an invoice for printing of the advertising brochure).

In T.743/89 the board held that it was in the respondent's (patent proprietor) own interest to ensure widespread distribution of the commercial pamphlet in order to inform as many potential customers as possible of this latest development in a highly competitive field. Here, it had been proved that a leaflet disclosing the invention had been printed seven months before the date of priority, but it was uncertain when the leaflet had been distributed. The board took the view that, although the date of distribution could no longer be ascertained, it was reasonable in any event to assume that distribution had occurred within the seven-month period (see also T.1748/10).

In T.146/13 the proprietor maintained that the opponent had not supplied proof that a commercial brochure (D6) had been distributed before the priority date of the patent in suit. The board noted that there was a gap of more than 24 months between the date of printing and the priority date and, citing the established case law (T.287/86, T.743/89, T.804/05, T.1748/10), held that this was sufficiently long to presume that D6 had been made available to the public. The board was also convinced that it was standard practice not to print a commercial brochure unless it was to be distributed to interested groups with a view to attracting the attention of potential clients. The publisher of D6 had likewise had it printed in an effort to present its products and their advantages to its target market (see also T.184/11).

In T.77/94 the argument that a publicity notice's date of issue was necessarily immediately after its date of printing (because such notices were only produced in order to be issued)

was held to be merely a supposition which required confirmation; in reality, things were often different (see also T.1440/04).

In T.353/14 the board decided that D10 could not be considered a commercial brochure of a company which was intended to inform potential customers about particular products of the company as in cases T.743/89, T.253/02, and T.804/05. Rather, document D10 had the nature of an applied electrical engineering paper. As such, the **copyright notice** and the revision mark could not be regarded as the date of printing of a stack of copies of D10 for their subsequent public distribution. D10 was not considered as having been made available to the public as a commercial brochure before the priority date. The public availability of D10 was then considered as to its availability on the internet (on the balance of probabilities).

In T.523/14 it was highly probable that the opponent distributed the advertising newsletter in Fall 2007, given its strong interest in attracting as many customers as possible for the new equipment in the emerging and highly competitive field of solar power. Furthermore the board considered that even not drafted in a manner as rigorous as a scientific publication, the information given in the advertising newsletter was sufficient to enable a skilled reader to practise the technical teaching.

d) Report available in the specialist field

In T.611/95 a research institute known in the field was in possession of a **report** anticipating the invention, which anyone could view at the institute or order from it on request. Two papers published prior to the priority date referred to this report and indicated where it could be obtained. In the board's view, the report was therefore publicly available. As far as availability to the public was concerned, the institute was not to be equated with a library, but the information in the documents had indicated to experts in the field that anyone could inspect or order the report there.

In ex parte case T.1130/11 the appellant (applicant) contested that D3 was publicly available and argued that it did not belong to the prior art because it was marked as internal report. Before the oral proceedings, the board performed a limited investigation on the internet about D3 and presented its results to the appellant during the oral proceedings. The board concluded that in the field of universities "Interner Bericht" did not mean confidential, but something like "technical report", and that D3 was publicly available prior art at the priority date.

e) Books

In T.842/91 the subject-matter of the claimed invention was included in a **book** to be published. Shortly before the priority date, the patent proprietor gave permission to the publisher to disclose the contents of the book. The board held that although the patent proprietor had clearly given the publisher permission to make the claimed subject-matter available to the public, this could not of itself amount to actually making it available.

In T.267/03 it was ruled that binoculars depicted photographically in a book on binoculars, with the manufacturer's name and an approximate date of manufacture ("ca. 1960") far earlier than the date of filing of the patent in suit, constituted prior art for that patent in respect of the binoculars' internal structure.

In T.915/12 the board considered that there was not sufficient evidence to prove that D16 – an extract from an encyclopedia – was made available to the public before the priority date (5 February 2001). The printing (2000) and **copyright** (1999) years indicated in D16 could not alone prove accessibility before early 2001. The handwritten annotation made by the head of Collections Department University on the cover page did not fulfil the requirements of form and content for affidavits. See T.1950/16 on dating documents using an ISBN number in conjunction with a copyright notice.

f) Instruction manual

T.55/01 concerned the public availability of an instruction manual, bearing a publication date, for the satellite receiver of certain makes of television set. The board observed that televisions were mass-produced consumer products which were rapidly distributed to the market without any obligation of confidentiality. It held that no further evidence was necessary to prove that televisions were actually sold to specified customers and that the handbook accompanying them was made available to the public within a period of about four months between their established production date and the priority date of the patent in suit, thereby taking into account the fact that events on the **mass market** such as the appearance of new television products were readily accessible to everybody, in particular to competitors, who would normally observe the market carefully. Hence, the balance of probabilities was the applicable standard of proof in cases such as this, as distinct from T.472/92.

In T.2105/12, concerning the public availability of a user guide and a testing guide for the same diabetes management system, carrying a **copyright date** (2002) which predated the earliest priority date (2006) of the patent in suit by about four years, the board concluded that like case T.861/04 (copyright of television user manuals), the present case concerned a device which was free to be marketed. Therefore, as in decision T.861/04, the board found it highly unlikely that it would have been kept in stock for about four years following Food and Drug Administration (FDA) approval.

See also T.1262/15 for a detailed discussion on public availability and date thereof, concerning an instruction manual.

g) Patent and utility models

T.877/98 raised the question whether a German patent had become publicly available upon notification of the grant decision if the application had not been published previously. The board took the view that the patent had not become available until publication of grant in the patent bulletin; only from that point on was the file open for inspection. It thus endorsed the view of the German Federal Patents Court (decision of 23.12.1994, 4W(pat)41/94, BIfPMZ 1995, 324).

In T. 315/02 the board said that a **patent application not yet published** in its country of origin could form part of the state of the art within the meaning of Art. 54(2) EPC 1973 if it was accessible to the public as a priority document for a published European application.

In T. 355/07 the board held that German utility models were considered publicly available as of their date of entry in the Register of utility models of the German Patent and Trademark Office so that they represented prior art in terms of Art. 54(2) EPC. It was not relevant whether on that date a member of the public actually inspected the file.

h) Trade names

In T. 2020/13, which concerned a catalyst composition and availability to the public of products defined by trade names, the board stated that where a technical term such as a **trade name** was known to have been abandoned between the filing or priority date and the publication date, this circumstance was to be taken into account in order to attribute to that technical term its proper meaning and to understand the technical teaching meant to be conveyed by that prior art document. The change of trade name did not render, in the circumstances of the case, the disclosure of example 6 of D1 unenabling. The board concluded that the nature of the catalysts behind the trade names was available to the public at the date of publication of D1 and that claim 1 lacked novelty.

On this issue in relation to Art. 83 EPC and its relationship to Art. 54 EPC, see T. 842/14 (chemical composition of a product designated by a **trademark**).

i) Abstracts of documents

In T. 160/92 (OJ 1995, 35) the board held that the teaching of a previously published abstract of a Japanese patent document, considered per se without its corresponding original document, formed prima facie part of the prior art and might be legitimately cited as such if nothing on the file pointed to its invalidity (T. 462/96).

In T. 1080/99 (OJ 2002, 568) the board held that in view of its legal nature and intended purpose, a Japanese patent abstract in English was a publication intended to reflect the technical content of the corresponding Japanese patent application for the purpose of quick prima facie information of the public, as was the purpose of any kind of abstract or summary of technical subject-matter. Hence the contents of such abstracts were to be interpreted, and possibly re-evaluated, in the light of the original document if the latter was available.

In T. 243/96 it was established that the abstract of a document, on the basis of which the application in suit was refused, is an independent part of the prior art in its own right. However, in view of the inadequacy of this disclosure, and the divergent views on how the abstract should be interpreted, the board decided to introduce the full document into the appeal proceedings in the form of its English translation, it being understood that the full document took precedence over the abstract.